



Top Fun Charters, LLC

PARTICIPANT AGREEMENT

WAIVER, RELEASE AND ASSUMPTION OF RISK

PARTICIPATION IN CHARTER AND BOATING ACTIVITIES ENTAILS KNOWN, ANTICIPATED AND UNANTICIPATED RISKS THAT COULD RESULT IN PHYSICAL AND/OR EMOTIONAL INJURY, PARALYSIS, DEATH OR DAMAGE TO YOURSELF AND/OR TO OTHERS. RISKS MAY INCLUDE, BUT ARE NOT LIMITED TO, SLIPPING AND FALLING, LANDING IMPROPERLY, DROWNING, COLLISIONS WITH FIXED OBJECTS, MOVING OBJECTS AND/OR OTHER PEOPLE WHICH MAY RESULT IN SPRAINS, FRACTURES, BREAKS, SCRAPES, BRUISES, DISLOCATIONS AND INJURIES TO HEAD, BACK AND NECK.

I acknowledge my understanding and agreement to the foregoing terms

In consideration of the services provided by Top Fun Charters, LLC, a Florida limited liability company, who is the owner and operator of Top Fun Charters and my desire to spectate and/or participate in the activities and services provided by Top Fun Charters, LLC today and in the future. Top Fun Charters, LLC and its individual members, managers, directors, officers, agents, employees, volunteers, representatives, servants, predecessors, successors, assigns, affiliated entities, heirs, personal representatives and all other persons, firms, or entities claiming by or through them are hereinafter known as "Charter company" OR Top Fun Charters):

I, on behalf of myself, my spouse, my child(ren), minor child for whom I am appointed guardian, my parent(s), my heirs, assigns, personal representative and estate hereby:

I agree to use the boat and its facilities in a safe and responsible manner.

I UNDERSTAND THAT THERE ARE INHERENT RISKS INVOLVED WITH FISHING, swimming AND BOATING, including but not limited to equipment failure, perils of the sea, harm caused by marine creatures (including bites), acts of fellow participants, entering and exiting the water, boarding or disembarking boats, and activities on the docks and I HEREBY ASSUME ALL SUCH RISKS. I UNDERSTAND THAT I HAVE A DUTY TO EXERCISE REASONABLE CARE FOR MY OWN SAFETY AND I AGREE TO DO SO.

I assert that I am physically fit to ride on a boat and I will not hold the Released Parties responsible if I am injured as a result of ANY problems (medical, accidental, or otherwise) which may occur while riding on the boat, or otherwise participating in the trip.

I will not remove my flotation device at any time while underway. I acknowledge that doing so will constitute a violation of safety rules and procedure for which I expressly assume the risk.

I fully understand that the involved boat has limited medical facilities and that in the event of illness or injury appropriate medical care must be summoned by radio and treatment will be delayed until I can be transported to a proper medical facility. I agree in advance to these conditions.

The Released Parties have made no representation to me implied or otherwise that they or their crew can or will perform safe rescues or render first aid. In the event I show signs of distress or call for aid I would like assistance and will not hold the Released Parties, their crew, boats or passengers responsible for their actions in attempting the performance of rescue or first aid.

ACKNOWLEDGMENT OF RISKS – The undersigned acknowledges all risks of participating in water sport activities, and include but are not limited to: 1) Changing water flow, currents, and watercraft wakes or waves; 2) Collisions with other participants, the watercraft, other watercraft, and man-made or natural objects; 3) Collision, capsizing, sinking or other hazard which results in wetness, injury, expose to the elements, drowning and/or death; 4) Attack by or encounter with insects and marine life forms; 5) Equipment failure or operator error; 6) My sense of balance, physical coordination, ability to operate equipment, swim and/or follow directions; 7) Wind, inclement weather, lightning, variances and extremes of wind, weather, and temperature, 9) Heat or sun related injuries or illnesses, including sunburn, sunstroke or dehydration. Unknown or unanticipated risks may also result in injury, illness or death.

EXPRESS ASSUMPTION OF RISK – The undersigned agrees that he/she is using the boat and equipment provided by Top Fun Charters at his/her own risk. The undersigned agrees that he/she is voluntarily participating in all activities related to the rental or use of the equipment, The undersigned assumes full responsibility for all risks of personal injury, damage, loss, accident or illness; as well as any resultant expenses from all risks undertaken, regardless of the cause, even if the risks arise out of the negligence or fault of Top Fun Charters.

Top Fun Charters will make every effort to maintain the complete itinerary but bad weather, heavy winds and unforeseen mechanical issues may alter the itinerary and yacht captains will make decisions based on these factors. I understand that the Captain's word is the law aboard the ship.

I agree and acknowledge that the Charter company may host some events which may employ the use of reduced and/or altered theatrical lighting, flashing lights, strobe lights, colors, smoke and other special effects. I recognize that some individuals have an increased sensitivity to such special effects which can induce seizures, migraines or other ailments leading to serious physical or emotional injury. If I am pregnant, have a heart condition or am aware of health concerns relating to my exposure to such special effects, I will not participate in the event. If I am not pregnant, do not have a heart condition or am not aware of any health concerns relating to my exposure to such special effects, I choose to voluntarily participate in the event, solely and exclusively, at my own risk, and that by participating, I waive the right to seek damages for any injuries that occur.

I agree to abide by Top Fun Charters LLC rules and instructions and the directions of employees and representatives, whereby I acknowledge that (i) those rules, instructions and directions are intended to promote the safety of both myself and others; (ii) my failure or refusal to abide by those rules,

instructions and directions can lead to the immediate revocation of my right to use the boat and its facilities, without any right to refund of any payments made; and (iii) in the event of sickness, accident or injury, (a) I will immediately report my injury to the charter company's staff and under no circumstances will I leave the charter without doing so, (b) I will cease all participation in charter activities at that time of sickness, accident or injury, (c) I authorize the charter company's employees and representatives to obtain and secure, on my behalf, emergency medical treatment and transportation, when deemed appropriate by Top Fun Charters employees and representatives, and (d) I agree to assume, at my expense, all costs of emergency medical care and transportation;

I agree to fully and forever waive, release and discharge Top Fun Charters from any and all claims, actions, causes of action, demands, judgments, damages (including compensatory, general, special, consequential, exemplary and punitive), liability or obligations of any nature or kind, whether known at the time I leave the charter or which may arise or become known later, which accrue on account of, or in any way arise out of or in connection with: (i) my activities from the charter (ii) the activities from the charter by others; (iii) the operation of the charter by owner regardless of whether such claims are founded in whole or in part upon alleged negligence, or the actual negligence of Top Fun Charters owner; (iv) my use of any and all of the charters facilities; and (v) my use of any and all equipment related to the charter, whether owned by me, Top Fun Charters or a third party;

I agree to indemnify and hold boat owner harmless from and against any and all losses, liabilities, claims, obligations, costs, damages, and/or expenses whatsoever, including, but not limited to, any and all attorneys' fees, costs, damages and/or judgments directly or indirectly arising out of, or relating to my acts or omissions while participating in any aspect of the charter.

I accept and assume all of the risks which accompany the charters activities and represent that my participation in the activities is purely voluntary, and I elect to participate in the activities notwithstanding the risks;

I fully understand that participating in the charter involves physical exertion, and accordingly represent that I (i) am in sufficiently good health to participate in charter activities; (ii) I do not have any pre-existing physical or medical condition, including without limitation pregnancy, orthopedic problems, including back problems; heart problems; and/or breathing problems, that might be impacted or worsened by participating in the charter; and (iii) will not engage in charter or charter related activities while under the use of any drugs, alcohol or medications that may impair my physical abilities or judgment;

I certify that I have adequate insurance to cover any injury or damage I may cause or suffer while participating in the charter and charter activities, or if not, I agree to bear the costs of such injury or damage to myself and others

I authorize Top Fun Charters, and its successors to capture my image, likeness and sounds in photographs, videotapes, recordings or other forms of media ("Images"). I acknowledge that Top Fun Charters will own such Images and I grant permission, without compensation, for Top Fun Charters Owner, or any affiliated party of Top Fun Charters to copyright, display, publish, distribute, use, modify and print such Images in any lawful manner, including without limitation, in publications, advertisements, brochures, web sites, social media and other electronic displays and transmissions thereof. The foregoing authorization shall not include using my name with any Image, unless I agree otherwise in writing.

I acknowledge my understanding and agreement to the foregoing terms

I agree that any legal proceeding shall be filed solely in the County of Manatee, Florida and I further agree that the substantive law of Florida shall apply in that action without regard to the conflict of law rules of that state. I agree that if any portion of this agreement is found to be void or unenforceable, the remaining portions shall remain in full force and effect.

By signing this document, I acknowledge that if anyone is hurt or property is damaged during my participation in this activity, I may be found by a court of law to have waived my right to maintain a lawsuit against Top Fun Charters on the basis of any claim from which I have released them herein. I have had sufficient opportunity to read this entire document. I have read and understood it, and I agree to be bound by its terms.

I understand and agree that: (i) that this Waiver, Release, and Assumption of Risk gives up important legal rights; (ii) I am giving up these important legal rights voluntarily, freely, under no threat of duress, without inducement, promise or guarantee being communicated to me; and (iii) the signature below is proof of my intention to execute a complete and unconditional WAIVER AND RELEASE of all liability to the full extent of the law.

It is my intention by this instrument to give up my right to sue all persons or entities referred to herein, whether specifically named or not, and it is also my intention to exempt and release all released parties and to hold these entities harmless from any and all liability for personal injury, property damage or wrongful death caused by negligence or gross negligence and i assume all risk in connection with fishing, swimming, snorkeling, crabbing and all boating activities, including but not limited to the maintenance of the equipment or organization of this activity.

WAIVER/RELEASE OF LIABILITY – By the execution of this Release, the undersigned voluntarily releases, forever discharges and agrees to indemnify and hold harmless Top Fun Charters from any and all liability of any nature for any and all injury, damage, loss, accident or illness sustained by the undersigned as a result of any and all activities related to the rental or use of equipment provided by Top Fun Charters regardless of the cause. The undersigned assumes full responsibility and agrees that Top Fun Charters shall not be responsible or liable for any injuries, damages, loss or theft of personal property **EVEN IN THE EVENT OF NEGLIGENCE OR FAULT BY Top Fun Charters**, whether such negligence is present at the signing of this Release or takes place in the future.

Further, in consideration for rental and use of equipment from Top Fun Charters, I release from all liability and promise not to sue Top Fun Charters from any and all claims as stated that may occur as a result of my participation, rental, and use of equipment from Top Fun Charters.

I further agree to hold Top Fun Charters harmless from any and all claims, including attorneys' fees and all damages. If Top Fun Charters incurs any of these types of expenses, I agree to reimburse Top Fun Charters. If I need medical treatment, I agree to be financially responsible for any and all costs incurred as a result of such treatment. I am aware and understand that I should carry my own health insurance.

LIABILITY TO THIRD PARTIES – The undersigned agrees that he/she will indemnify and hold harmless Top Fun Charters for all personal injuries, property damages, or any other damages to any and all third parties, including but not limited to, passengers of other watercraft as a result of any and all activities related to the rental or use of equipment provided by Top Fun Charters even if such damages arise out of the negligence or fault of Top Fun Charters.

If in the opinion of the Top Fun Charters crew, a customer's behavior is disrupting the peaceable enjoyment of the trip or causing danger, distress, or annoyance to the crew or other guests; such as but not limited to, excessive alcohol consumption, argumentative or abusive behavior or political, sexual, religious and racial slurs; Top Fun Charters may terminate the customer's trip and the customer will not be entitled to any refund nor contribution to costs incurred resulting from the termination of the trip. The customer must at all times strictly comply with the local laws, customs and regulations. Should the customer commit any illegal offense when on the trip, Top Fun Charters may terminate the customer's trip and the customer will not be entitled to any refund nor contribution to costs incurred resulting from the termination of the trip.

ACKNOWLEDGMENT OF WAIVER AND RELEASE – The undersigned states that he/she has had sufficient time to read and review the Waiver and Release, as well as to ask any questions associated with said Release to understand the provisions as stated. The undersigned also has been instructed by Top Fun Charters of all requirements and policies for rental and use of equipment, as well as been afforded the time to read and review all requirements and policies stated on its website at <https://Topfuncharters.com>. The undersigned signed this Release as his/her own free act. The undersigned warrants that he/she has chosen to charter with Top Fun Charters, rent or use equipment from Top Fun Charters with the knowledge that signing this Release is a requirement for participating in a charter and rental and use of equipment.

The undersigned further warrants that he/she is fully aware that he/she is waiving any right he/she may have to bring a legal action to assert a claim against Top Fun Charters for negligence.

I have read this document, and by submitting this form in person, mail, or electronically, I am signing it freely. No other representations concerning the legal effect of this document have been made to me.

PARTICIPANT: I represent that I am Eighteen (18) years of age or older

If the Participant is not 18 years of age or older, then the following Parent or Guardian Consent contained on the next page must be read and signed before the Participant is allowed to use Top Fun Charters services and its facilities.

Signature and acknowledgment:

Name Print: _____

Signature: _____

PARENT OR GUARDIAN CONSENT:

NOTICE TO THE MINOR CHILD'S NATURAL GUARDIAN

READ THIS FORM COMPLETELY AND CAREFULLY. YOU ARE AGREEING TO LET YOUR MINOR CHILD ENGAGE IN A POTENTIALLY DANGEROUS ACTIVITY. YOU ARE AGREEING THAT, EVEN IF PARK OWNER USES REASONABLE CARE IN PROVIDING THIS ACTIVITY, THERE IS A CHANCE YOUR CHILD MAY BE SERIOUSLY INJURED OR KILLED BY PARTICIPATING IN THIS ACTIVITY BECAUSE THERE ARE CERTAIN DANGERS INHERENT IN THE ACTIVITY WHICH CANNOT BE AVOIDED OR ELIMINATED. BY SIGNING THIS FORM YOU ARE GIVING UP YOUR CHILD'S RIGHT AND YOUR RIGHT TO RECOVER FROM TOP FUN CHARTERS IN A LAWSUIT FOR ANY PERSONAL INJURY, INCLUDING DEATH, TO YOUR CHILD OR ANY PROPERTY DAMAGE THAT RESULTS FROM THE RISKS THAT ARE A NATURAL PART OF THE ACTIVITY. YOU HAVE THE RIGHT TO REFUSE TO SIGN THIS FORM, AND TOP FUN CHARTERS HAS THE RIGHT TO REFUSE TO LET YOUR CHILD PARTICIPATE IN THE ACTIVITY IF YOU DO NOT SIGN THIS FORM.

PARENT OR GUARDIAN CONSENT

I have read and understand the terms of this WAIVER, RELEASE AND ASSUMPTION OF RISK AGREEMENT and unconditionally agree to its full terms, statements, warranties, notices, representations, waivers and releases on behalf of both myself and marital community, if any, and my child or ward. All such terms, statements, warranties, notices, representations, waivers and releases fully apply to my child or ward as if I was the participant. I understand that, by signing this Consent, I am giving up important legal rights both on behalf of myself and my child or ward regarding potential rights and claims against Top Fun Charters. I have had sufficient opportunity to read this entire document. I have read and understood it, and I agree to be bound by its terms.

I hereby warrant and represent that if I am neither the Child's Parent or legal Guardian, I have been granted the expressed authority to execute this Waiver, Release and Assumption of Risk Agreement by, and on behalf of, the Child's Parent or Guardian. In the event that I do not have the authority to execute this agreement on behalf of another, I agree that I shall be solely liable for any and all claims, actions, penalties, causes of action, services, fees or similar expenses.

Signature of Participant (Only if age 18 or older) Date Telephone# Emergency Contact Number

Print Name Address City State Zip

This is to certify that I, as parent/guardian with legal responsibility for this participant, do consent and agree to his/her release as provided above of all Releases and, for myself, my child, all heirs, assigns, and next of kin. I release and agree to indemnify and hold harmless the involvement or participation in these programs as provided above EVEN IF ARISING FROM THE NEGLIGENCE OF THE RELEASED PARTIES TO THE FULLEST EXTENT PERMITTED BY LAW.

Participant Signature and acknowledgment:

Name Print:_____

Address:_____

City, State, Zip_____

Minors names:

Signature of parent / guardian:_____